

VCU319821 Garcia-Leon, Karen P. vs. American Honda Motor Co., Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-22

Motion: Motion to Strike Costs

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Re: Garcia-Leon, Karen P. vs. American Honda Motor Co., Inc.

Case No.: VCU319821

Date: September 22, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion to Strike Costs

Tentative Ruling: To deny the unopposed motion

Facts

Plaintiff, on June 29, 2026, filed their memorandum of costs on MC-10, seeking to recover \$6,142.17 as follows:

Cost

Amount

Challenge by Defendant?

1. Filing and Motion Fees

\$665.00

No

2. Jury Fees

\$150.00

No

4. Deposition costs

\$531.25

Yes

5. Service of Process

\$163.00

No

8. Witness Fees

\$4,294.67

Yes

14. Fees for electronic filing or service

\$142.75

No

16. Other

\$195.00

No

Total

\$6,142.17

On July 15, 2026, Defendant AMH filed its motion to tax or strike costs, as set forth in additional detail below.

No opposition to the motion appears filed.

Authority and Analysis

Strike or Tax Costs

“Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Court, Rule 3.1700(b)(2).)

Here, Plaintiffs’ motion follows Rule 3.1700(b)(2) as to specific categories identified above in the chart and discussed in greater detail below.

The starting point is the verified Memorandum of Costs and Code of Civil Procedure section 1033.5. “[T]he verified Memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred” and the burden rests with the party seeking to tax costs to show they were improper, unreasonable or unnecessary. (Benach v. County of Los Angeles (2007) 149 Cal.App.4th 836, 855-856.)

Allowable costs under section 1033.5 must be reasonably necessary to the conduct of the litigation, rather than merely convenient or beneficial to its preparation, and must be reasonable in amount. An item not specifically allowable under Section 1033.5(a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if they meet the above requirements (i.e., reasonably necessary and reasonable in amount).

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (Ladas v. California State Automotive Assoc. (1993) 19 Cal.App.4th 761, 773-774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Id.) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (Id.)

“[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [Citation.] However, ‘[i]f the items appear to be proper charges, the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’ [Citations.]” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.)

A party contesting costs must state why the contested item is objectionable. (California Rules of Court Rule 3.1700(b)(2)). Factual recitals rather than mere conclusions are required. Conclusory allegations that the item was “neither necessary nor reasonable” do not satisfy the objecting party’s burden. (County of Ker v. Ginn (1983) 146 Cal App.3d 1107, 1113-1114; Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.)

However, Civil Code section 1794, subdivision (d) enables the prevailing “buyer” in a Song-Beverly matter to be “...allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses...” (Civ. Code, § 1794, subd. (d), emphasis added.) Courts have interpreted Section 1794’s “expenses” provision to include “out-of-pocket expenses beyond the costs identified in Code of Civil Procedure section 1033.5. (Smalley v. Subaru of America, Inc. (2022) 87 Cal.App.5th 450, 457 [citing Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138, disapproved on other grounds].)

4. Deposition Costs

To start, the Court considers deposition costs as to Plaintiff's deposition within the costs and expenses contemplated by Civil Code section 1794(d).

Additionally, California Code of Civil Procedure § 1033.5(a)(3) expressly states that costs are allowable for: "taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed." (Code Civ. Proc., § 1033.5(a)(3)) (emphasis added.) "A prevailing party is entitled to the reasonable cost of taking depositions unless it appears that the taking of the depositions was unnecessary." (Ceranski v. Muensch (1943) 60 Cal.App.2d 751, 755). "Travel expenses to attend depositions" are also recoverable. (Code Civ. Proc. §§ 1033.5(a)(3)(A)-(B).) "Determination of whether a cost is reasonable is within the trial court's discretion." (Thon v. Thompson (1994) 29 Cal.App.4th 1546, 1548.)

Here, Plaintiff seeks recovery for costs of the copy of the transcript of Plaintiff's deposition, which is expressly provided as a recoverable cost above.

Therefore, the Court denies the motion as to the deposition costs.

8. Expert Witness Fees

Here, Plaintiff seeks expert witness fees consisting of "Document intake and Review, Vehicle Inspection, Travel Expenses, Expert" incurred April 23, 2026 and "Deposition Preparation" incurred May 8, 2026.

While under section 1033.5 fees paid to expert witnesses are generally not recoverable under Code of Civil Procedure section 1033.5(b)(1): "The following items are not allowable as costs, except when expressly authorized by law: Fees of experts not ordered by the court." (See Sanchez v. Bay Shores Medical Group (1999) 75 Cal.App.4th 946, 950. ["In the absence of an order of the trial court appointing an expert witness, the fees of an expert witness are not recoverable as costs under Code of Civil Procedure section 1032."])

However, Civil Code section 1794(d) expands the recovery of expenses and costs by a prevailing Plaintiff and appears to authorize such fees by law.

In Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138 (disapproved by Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189 on other grounds), the court considered expert fees recoverable because such fees are covered under "costs and expenses" in section 1794(d). The court noted that section 1033.5(b)(1) expressly excludes expert fees "...except when expressly authorized by law," but that "cost and expenses" included "...out-of-pocket expenses [including] filing fees, expert witness fees, marshal's fees, etc..." (Id. at 138.)

Therefore, the Court will deny the motion to strike as to this category.

Summary

Therefore, the Court awards \$6,142.17 in costs as follows.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.